

(3) The witnesses on the inquiry may, if the person holding it thinks fit, be examined on oath.

(4) Subject as aforesaid, the inquiry and all proceedings preliminary and incidental thereto shall be conducted in accordance with rules made by the Minister.

(5) The fee to be paid to the person holding the inquiry shall be such as the Minister may direct and shall be deemed to be part of the expenses of the Minister in carrying this Act into effect.

CHAPTER 31.

An Act to make provision for the Restoration and Maintenance of Order in Ireland. [9th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Regulations
for the
restoration
and main-
tenance of
order in
Ireland.
5 & 6 Geo. 5.
c. 8.

1.—(1) Where it appears to His Majesty in Council that, owing to the existence of a state of disorder in Ireland, the ordinary law is inadequate for the prevention and punishment of crime or the maintenance of order, His Majesty in Council may issue regulations under the Defence of the Realm Consolidation Act, 1914, (hereinafter referred to as the principal Act) for securing the restoration and maintenance of order in Ireland, and as to the powers and duties for that purpose of the Lord Lieutenant and the Chief Secretary, and of members of His Majesty's forces and other persons acting on His Majesty's behalf, and in particular regulations for the special purposes hereinafter mentioned :

Provided that all regulations so made shall be laid before both Houses of Parliament as soon as may be after they are made, and, if an address is presented to His Majesty by either House within the next fourteen days during the session of Parliament after any such regulation is laid before it praying that the regulation may be annulled, His Majesty may annul the regulation and it shall thenceforth be void, without prejudice to the validity of anything done thereunder, or to the power of making a new regulation; and the regulations shall not be deemed to be statutory rules within the meaning of section one of the Rules Publication Act, 1893.

56 & 57 Vict.
c. 66.

(2) The provisions of the principal Act with respect to the trial by courts-martial or courts of summary jurisdiction and punishment of persons committing offences against the Defence

of the Realm Regulations, shall extend to the trial of persons alleged to have committed, and the punishment on conviction, of persons who have committed crimes in Ireland, whether before or after the passing of this Act, including persons committed for trial or against whom indictments have been found, so, however, that—

(a) any crime when so tried shall be punishable with the punishment assigned to the crime by statute or common law;

(b) a court-martial when trying a person charged with a crime punishable by death shall include as a member of the court one person (who need not be an officer, or, if an officer, need not possess such qualification as is mentioned in subsection (3) of section forty-eight of the Army Act) nominated by the Lord Lieutenant, being a person certified by the Lord Chancellor of Ireland or the Lord Chief Justice of England to be a person of legal knowledge and experience;

and regulations under the principal Act may be made accordingly.

(3) Regulations so made may also—

(a) provide that a court of summary jurisdiction, when trying a person charged with a crime or with an offence against the regulations or when hearing and determining any application with respect to a recognisance, shall, except in the Dublin metropolitan police district, be constituted of two or more resident magistrates, and that a court of quarter sessions, when hearing and determining an appeal against a conviction of a court of summary jurisdiction for any such crime or offence, or against an order made on any such application, shall be constituted of the recorder or county court judge sitting alone;

(b) confer on a court-martial the powers and jurisdiction exercisable by justices or any other civil court for binding persons to keep the peace or be of good behaviour, for estreating and enforcing recognisances, and for compelling persons to give evidence and to produce documents before the court;

(c) confer on persons authorised to summon witnesses before a court-martial the power of issuing warrants for compelling persons to attend as witnesses, and any warrant so issued shall have the like effect and be executed in the like manner as if issued by a justice or court of summary jurisdiction having jurisdiction in the place in which it is executed or sought to be executed;

(d) authorise the imposition by courts-martial of fines in addition to or in substitution for any other punishments for offences against the regulations, as well as for crimes,

and provide for the manner in which such fines are to be enforced;

(e) authorise the conveyance to and detention in any of His Majesty's prisons in any part of the United Kingdom of any persons upon whom a sentence of imprisonment has been passed in Ireland, whether before or after the passing of this Act;

(f) provide for any of the duties of a coroner and coroner's jury being performed by a court of inquiry constituted under the Army Act instead of by the coroner and jury;

(g) provide that, where the court house or other building in which any court is usually held has been destroyed or rendered unfit or is otherwise unavailable for the purpose, the court may be held in such other court house or building as may be directed by the Lord Lieutenant;

(h) authorise the trial without a jury of any action, counter claim, civil bill, issue, cause, or matter in the High Court or a county court in Ireland which, apart from this provision, would be triable with a jury;

(i) provide for the retention of sums payable to any local authority from the Local Taxation (Ireland) Account, or from any Parliamentary grant, or from any fund administered by any Government department or public body, where the local authority has in any respect refused or failed to perform its duties, or for the purpose of discharging amounts awarded against the local authority in respect of compensation for criminal injuries, or other liabilities of the local authority, and for the application of the sums so retained in or towards the purpose aforesaid.

(4) Any such regulations may apply either generally to the whole of Ireland or to any part thereof, and may be issued at any time, whether before or after the termination of the present war, and the principal Act shall continue in force so far as may be necessary for that purpose, and the regulations may contain such incidental, supplemental, and consequential provisions as may be necessary for carrying out the purposes of this Act, and shall have effect as if enacted in this Act.

5 & 6 Geo. 5.
c. 34.

(5) Section two of the Defence of the Realm (Amendment) Act, 1915, shall apply to proceedings before a court-martial in respect of a crime or an offence against the regulations, but, save as aforesaid, that Act shall not apply.

(6) In this Act, unless the context otherwise requires—

The expression "crime" means any treason, treason felony, felony, misdemeanor, or other offence punishable,

whether on indictment or on summary conviction, by imprisonment or by any greater punishment, other than offences against the Defence of the Realm Regulations :

The expression " person committed for trial " shall include a person who has entered into a recognisance conditioned to appear and plead to an indictment or to take his trial upon any criminal charge, or who has been committed to prison there to await his trial for any crime.

2. This Act may be cited as the Restoration of Order in Short title. Ireland Act, 1920.

CHAPTER 32.

An Act to apply certain sums out of the Consolidated Fund to the service of the years ending on the thirty-first day of March one thousand nine hundred and nineteen and one thousand nine hundred and twenty-one, and to appropriate the Supplies granted in this Session of Parliament. [16th August 1920.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom of Great Britain and Ireland in Parliament assembled, towards making good the supply which we have cheerfully granted to Your Majesty in this session of Parliament, have resolved to grant unto Your Majesty the sums hereinafter mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

GRANTS OUT OF CONSOLIDATED FUND.

1. The Treasury may issue out of the Consolidated Fund of the United Kingdom of Great Britain and Ireland, and apply towards making good the supply granted to His Majesty for the service of the year ended on the thirty-first day of March, one thousand nine hundred and nineteen, the sum of fifty-seven thousand seven hundred and seven pounds six shillings and seven pence.

Issue of
57,707l. 6s. 7d
out of the
Consolidated
Fund.

2. The Treasury may issue out of the Consolidated Fund of the United Kingdom of Great Britain and Ireland, and apply

Issue of
445,870,339l.
out of the